

		Plaintiff is not the “prevailing party” such that he is entitled to fees. Code of Civil Procedure section 1032 defines the prevailing party as follows: “ ‘Prevailing party’ includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the ‘prevailing party’ shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.” (Code Civ. Proc., § 1032, subd. (a)(4).) Here, no party has obtained a net monetary recovery and there have been no judgments in favor of Plaintiff on the merits of the causes of action alleged related to Plaintiff’s current action, Case No. 2021-01231249. Plaintiff spends much of his motion arguing that he is entitled to class action fees. The operative Complaint at issue in this case (Case No. 2021-01231249) has not been brought or certified as a class action. As such, Plaintiff is not entitled to any fees that only apply in class action cases. Moreover, Plaintiff is not entitled to recover fees related to his appeal in Plaintiff’s current action, Case No. 2021-01231249. The Court of Appeal expressly ordered: “In the interest of justice, the parties shall bear their own costs on appeal. (Cal. Rules of Court, rule 8.278(a)(5).)” (ROA 196.) Plaintiff also appears to seek attorney fees pursuant to contract. “[I]n deciding whether there is a ‘party prevailing on the contract,’ the trial court is to compare the relief awarded on the contract claim or claims with the parties’ demands on those same claims and their litigation objectives as disclosed by the pleadings, trial briefs, opening statements, and similar sources.” (<i>Hsu v. Abbata</i> (1995) 9 Cal.4th 863, 876.) “The prevailing party determination is to be made only upon final resolution of the contract claims and only by ‘a comparison of the extent to which each party ha[s] succeeded and failed to succeed in its contentions.’ ” (<i>Ibid.</i>) Here, no relief has been awarded regarding Plaintiff’s contract claims in this case (Case No. 2021-01231249) and therefore Plaintiff is not entitled to attorney fees pursuant to contract at this time. In sum, the Motion for Attorney Fees is DENIED. Clerk to give notice.
2.	30-2025-01519929 Baloy vs. General Motors	1. Motion for Attorney Fees 2. Order to Show Cause re: Dismissal on Settled Case Plaintiff Dennis Baloy (“Plaintiff”) moves for an order awarding him attorney fees pursuant to Civil Code section 1794(d), in the amount of \$37,045.16 against defendant General Motors, LLC (“Defendant”). Civil Code section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” “As the plain wording of section 1794, subdivision (d) makes clear, the

trial court is ‘to base the fee award upon actual time expended on the case, as long as such fees are *reasonably* incurred—both from the standpoint of time spent and the amount charged.’ ” (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247.) “Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ‘ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.’ ” (*Ibid.*)

Hourly Rates

Ashkan Reza has 14 years of experience and billed at an hourly rate of \$625.00. Lauren Warwick is an attorney with approximately 5 years of experience and billed at an hourly rate of \$425.00. Chris Grigoryan is an attorney with approximately 3 years of experience and billed at an hourly rate of \$425.00.

Based on the Court’s experience with Song-Beverly actions and knowledge of the prevailing rates for similar cases in Orange County, the Court finds the rates to be reasonable.

Hours Expended

Plaintiff’s counsel conducted investigation into the vehicle’s history, prepared pleadings and statutory disclosures, reviewed Defendant’s document production, and prepared for mediation. No depositions were taken. Counsel billed a total of 64.7 hours over the span of the litigation.

As to the amount of time expended, the Court agrees with Defendant that several entries are inflated and/or duplicative. The Court finds that the time spent on 11/21/25 reviewing the proposed stipulation and protective order should be reduced from 0.8 hours to 0.3 hours, the time spent on 12/26/25 drafting meet and confer correspondence should be reduced from 0.8 hours to 0.4 hours, and the 2/2/26, 2/3/26, 2/5/26, 2/6/26, 2/9/26, and 2/11/26 entries for reviewing Defendant’s document production should be reduced from 8.7 hours to 3 hours. This equals a total of \$2,805 in reductions.

The Court finds the remaining time entries to be reasonable.

Multiplier

When considering a request for a multiplier, trial courts may consider “the contingent nature of the fee award, the novelty and difficulty of the questions involved and the skill displayed in presenting them.” (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488.) Factors to be considered when a multiplier is requested include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

Here, this was a straightforward Lemon Law action that presented no novel or difficult questions of law and no particularly high degree of skill was required in prosecuting Plaintiff’s claims. Thus, the request for a multiplier is **DENIED**.

In light of the above, the Motion for Attorney Fees is **GRANTED** in the amount of **\$23,934.46**.

Moving party to give notice.